



File No: EXP202206008

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 22, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against ALBEN AIRPORT FACILITIES S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202206008

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Ms. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on May 16, 2022. The complaint is directed against QUIRÓN PREVENCIÓN, S.L.U (hereinafter, QUIRÓN). The reasons on which the complaint is based are as follows:

The claimant states that she participated in a training action provided by AVSEC through Quirón prevención and that, on July 9, 2021, it sent an email to the participants, including the certificates of completion of the course to all participants, revealing the data of these to all participants in the training, including their names and surnames, as well as their ID numbers.

She provides images of the email sent and its content.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to QUIRÓN, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on May 27, 2022, as recorded in the acknowledgment of receipt in the file.

On June 24, 2022, a response was received in this Agency indicating (...)

(...)

THIRD: The website of FORMACIÓN AVSEC, which is the entity that signed the email and whose address appears in it, includes the following information: "All information contained within the server formacionavsec.com is the property of ALBEN 4000 Ingeniería y Consultoría SLP, and its disclosure, copying, or distribution to third parties is prohibited without the prior written authorization of ALBEN 4000 Ingeniería y Consultoría SLP."

Therefore, on July 4, 2022, and in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to ALBEN 4000 CONSULTORIA, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on the same day, as recorded in the acknowledgment of receipt in the file.

On July 13, 2022, a response was received in this Agency stating that "...ALBEN 4000

CONSULTORIA is a company whose purpose is the development of engineering and consulting work in airport infrastructures and has never been dedicated to providing airport security courses, nor, specifically, has it provided the "Airport Security Awareness Course" to Ms. A.A.A. or to any other person.

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THAT ALBEN 4000 CONSULTORIA is not accredited by the AESA to provide this training.

THAT it can be noted that ALBEN 4000 CONSULTORIA is not mentioned at any time in the certificate attached in Annex I of the complaint, nor in any other document submitted by the complainant...

FOURTH: On July 15, 2022, the aforementioned complaint was forwarded to ALBEN AIRPORT FACILITIES S.L, with NIF B45850336 (hereinafter, ALBEN) for them to analyze the complaint submitted and inform this Agency within one month; however, no response has been received.

FIFTH: On August 16, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

SIXTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On February 17, 2023, information was requested from the complainant to confirm whether the email was received at the complainant's personal email address as a blind copy or if it was only received at the email address (...)@quironprevencion.com, as well as the list of people who have access to that email address, with the request being notified on February 27, 2022; however, no response has been received.

On February 17, 2023, a request for information was sent to QUIRÓN to clarify which individuals have access to the email address where the email subject to the complaint was received, as well as possible email forwarding from that address and information regarding the hiring of the training course that originated the certificate in question.

QUIRÓN submitted its written allegations on March 3, 2023, accompanied by the following documentation, specifying the hiring of the training course:

1.- Framework contract for the provision of training services, between QUIRÓN and ALBEN AIRPORT, dated July 16, 2020.

2.- Technical specifications for the provision of specific activities in the field of occupational risk prevention, as well as advice and support to the joint occupational risk prevention service of AENA (SPMA).

It also provides a list of QUIRÓN personnel who have access to the email address (...)@quironprevencion.com, which "is not used for sending certificates, but for receiving them in order to verify and comply with the required procedures [...]". "At no time was this account used to forward emails received to personal email addresses."

It continues by indicating that the email subject to the complaint was sent from the address cursos@formacionavsec.com by ALBEN AIRPORT "with the diplomas in visible copy to the workers of QUIRÓN deployed at AENA, to their personal email addresses, and to the coordination area of business activities of QUIRÓN through the aforementioned email address."

(Note: the underlining has been added by the Agency)

On February 17, 2023, a request for information was sent to ALBEN4000 to clarify, among other matters, the relationships between the entities ALBEN and the domain formacionavsec.

ALBEN4000 sent its response to this Agency on March 2, 2023, and March 3, 2023, with both responses being identical except for the representative who submitted the documentation at the General Registry Office, providing the following documentation and statements:

.- That ALBEN4000 "is aimed at the development of engineering and consulting work in airport infrastructures and has never been dedicated to providing airport security courses."

.- That ALBEN4000 has no relationship with ALBEN AIRPORT. "There is no dependency relationship between them, nor are the owners of their share capital the same at present, nor do they belong to the same corporate group."

.- That the domain formacionavsec.com is a platform that allows entities such as ALBEN AIRPORT to provide training. "However, formacionavsec.com is limited to providing the means to deliver the training, leaving the rest in the hands of those who provide the training."

.- That the mentioned domain belongs to Mr. B.B.B., owner of ALBEN 4000, "but who sold his shares to SONDEOS, ESTRUCTURAS Y GEOTECNIA S.L. through a share swap dated August 8, 2018, whereby Mr. B.B.B. transferred his shares of ALBEN 4000 CONSULTORA SL to SONDEOS, ESTRUCTURAS Y GEOTECNIA and in exchange received a minority share in SONDEOS, ESTRUCTURAS Y GEOTECNIA S.L."

ALBEN 4000 provides the deed of the share swap.

.- That SONDEOS, ESTRUCTURAS Y GEOTECNIA S.L. has never had any relationship with the domain formacionavsec.com.

.- That, consequently, it cannot respond to the questions raised "because the entity providing the training is not ALBEN 4000, but ALBEN AIRPORT FACILITIES SL, and the platform used by the company to provide that course is not responsible for sending those emails."

The response document is signed by C.C.C. in his capacity as (...) of SONDEOS ESTRUCTURAS Y GEOTECNIA SL (the absorbing company of ALBEN4000). It includes the signed deed of the merger by absorption.

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On February 17, 2023, a request for information was sent to ALBEN AIRPORT, which did not respond to the Agency's request for information.

On March 13, 2023, the "Who We Are" tab on the formacionavsec.com website was checked again. It is evident that the text has been modified and now states "FormacionAvsec (ALBEN Airport Facilities SL) has been providing training in Operational Security for over 7 years, being one of the platforms that has led the training of numerous companies and workers in matters related to AVSEC. [...]"

In the absence of a response from ALBEN AIRPORT and since the sole administrator of ALBEN AIRPORT is the person who signed the response document to the transfer from ALBEN4000, on March 14, 2023, a new request for information was sent to ALBEN4000 to clarify certain aspects of the investigation.

This entity sent its response on March 21, 2023, again stating that ALBEN4000 has no relationship whatsoever with the company ALBEN AIRPORT. "There is no dependency relationship between the two companies, nor are the holders of their share capital the same at present, nor do they belong to the same corporate group, nor is there any commercial relationship linking the two companies, so this party does not understand why ALBEN AIRPORT uses the domain formacionavsec.com as it has no relationship with it." And therefore, it cannot provide the requested logs.

It also clarifies that by mistake in its previous response it had indicated that the domain formacionavsec.com belongs to Mr. B.B.B., when in fact it belongs to ALBEN AIRPORT. It provides as an Annex the document of ownership of the domain formacionavsec.com.

Confirmation of the tax address of ALBEN AIRPORT was requested from the Planning and Institutional Relations Service of the State Agency for Tax Administration (hereinafter, AEAT), and on March 30, 2023, a response was received from AEAT, which provides the current tax address ***ADDRESS.1, which matches the address specified in AXESOR and to which the postal notification that is recorded as Returned to the sender due to unknown was sent.

Information was requested from the Cadastre about the owners of said property on March 29, 2023, through the property inquiry service, and the Agency was informed that the owners are:

.- NIF: ***NIF.1 Name of the owner: D.D.D.

.- NIF: ***NIF.2 Name of the owner: E.E.E.

Both with Ownership Right: XX.XX% of Ownership.

Initially, these owners do not appear to have any relationship with the company ALBEN AIRPORT.

On March 31, 2023, the request for information was sent again to ALBEN AIRPORT (by both electronic and postal means) and a notice was simultaneously sent to the email address cursos@formacionavsec.com at the address C/ Jorge Juan, 6

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which informs about the availability of an electronic notification. This notification was accepted in the service of the Single Enabled Electronic Address (DEHÚ) on March 31, 2023, by B.B.B.; however, no response has been received.

On April 10, 2023, clarifications were requested from QUIRÓN regarding its response to the first request, with the aim of confirming a date, possible typographical error, understanding the contracting protocol for training activities, and evidencing that communications between both companies are not encrypted, despite the contract stipulating that personal data cannot be sent in clear electronically. QUIRÓN acknowledges that in its previous response, it referred to the email received on July 9, 2021, instead of the date June 16, 2020: "it was a confusion in the wording."

Regarding the email subject to the complaint, it communicates that it does not have a copy of the email in question. It provides as evidence the documents submitted by the complaining party in its writing. In relation to the communication to ALBEN AIRPORT about the number of participants in the training activity and the personal data needed to manage it, QUIRÓN provides as Annex II the ALBEN AIRPORT FACILITIES S.L. Procedure, AVSEC Trainings.

SEVENTH: ALBEN AIRPORT FACILITIES S.L is a microenterprise with a sales volume of €66,163 (SIXTY-SIX THOUSAND ONE HUNDRED SIXTY-THREE EUROS).

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

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In this case, the responding party has sent the complaining party an email from the formacionavsec.com account, to which the certificates of completion of a course for the fourteen participants in the training were attached. These certificates contain personal data such as name, surname, and ID number.

According to the provisions of Article 4.1 of the GDPR, there is a processing of personal data, since ALBEN carries out, among other processes, the collection, storage, and use of the following personal data of individuals accessing its training courses, such as: name and surname, ID number.

ALBEN carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR. Article 4, section 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

In this case, there is a personal data security breach under the circumstances mentioned above, categorized as a confidentiality breach; as a result of sending an email to the complainant that included the certificates of completion of the course for all participants in the training, revealing the data of these individuals to the complainant, including, among others, name and surname, as well as the ID number.

The security of personal data is regulated in Articles 32, 33, and 34 of the GDPR, which regulate both the security of processing, the notification of a personal data security breach to the supervisory authority, and the communication to the data subject, respectively.

III

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, it is established that there has been unauthorized access to the personal data of the other participants in the training, violating the principle of confidentiality, as an email was sent to the participants in the training that included the certificates of completion of the course of

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each of them, disclosing their details, such as name and surname, as well as the DNI number.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered that the known facts could constitute an infringement attributable to ALBEN for violation of Article 5.1.f) of the GDPR.

IV

Classification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations: those that constitute a substantial violation of the articles mentioned therein and, in particular, the

following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Sanction for the infringement of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is appropriate to determine the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR.

It is also considered appropriate to determine the sanction to be imposed according to the criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

As aggravating factors:

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b) The connection of the infringer's activity with the carrying out of personal data processing.

ALBEN is dedicated to training companies, a professional activity subject to the duty of confidentiality regarding the participants in its various courses, which involves continuous data processing.

In the delivery of these courses, numerous personal information related to their participants is collected.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 5.1.f) of the GDPR, allows for an initial sanction of €1500 (ONE THOUSAND FIVE HUNDRED EUROS).

VI

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying probability and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. When assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the data processing, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

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3. Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements established in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller, unless required to do so by Union law or the law of the Member States.

It is noteworthy that in the Data Processing Agreement between QUIRÓN and ALBEN it is stated that

“Personal data may only be distributed through electronic communication networks if they have been encrypted, encoded, or any other mechanism is used to ensure that the information is not intelligible or is not manipulated by third parties.”

However, the images of the email subject to the complaint provided as evidence show an unencrypted message.

Additionally, the procedure that establishes communications between QUIRÓN and ALBEN (“Procedure ALBEN AIRPORT FACILITIES S.L., AVSEC Training”) provided by QUIRÓN indicates that communications between QUIRÓN and ALBEN are conducted via email and does not specify that encryption is used.

This procedure specifies that ALBEN AIRPORT sends the accreditations in two shipments, one personalized and another shipment to QUIRÓN at the corporate address. The email subject to the complaint is a single email.

Consequently, in the present case and at the time of the breach, it is evident that ALBEN lacked reasonable security measures based on the estimated potential risks, as well as that the information and training directed at the personnel who were to process personal data was entirely insufficient, specifically regarding the sending of emails.

For all these reasons, in accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement attributable to ALBEN for violation of Article 32 of the GDPR.

VII

Classification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could entail the commission of the infringements classified in Article 83.4 of the GDPR which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

5) the obligations of the controller and the processor pursuant to Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a two-year statute of limitations:

...

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679.

VIII

Sanction for the infringement of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is appropriate to grade the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR.

It is also considered appropriate to grade the sanction to be imposed according to the criteria established in paragraph 2 of Article 76 “Sanctions and corrective measures” of the LOPDGDD:

As aggravating factors:

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b) The connection of the infringer's activity with the processing of personal data.

ALBEN is dedicated to training companies, a professional activity subject to the duty of confidentiality regarding the participants in its various courses, which involves continuous processing of data. In the delivery of these courses, numerous personal information related to their participants is collected.

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The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, concerning the infringement committed by violating the provisions established in Article 32 of the GDPR, allows for an initial sanction of €1000 (ONE THOUSAND EUROS).

IX

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations are compliant with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ALBEN AIRPORT FACILITIES S.L, with NIF B45850336, for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR, and for the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of the GDPR.

SECOND: TO APPOINT F.F.F. as instructor and H.H.H. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Sub-Directorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, without prejudice to what results from the instruction, the sanction that may correspond would be,

- For the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of €1500.00

- For the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of €1000.00

FIFTH: TO NOTIFY this agreement to ALBEN AIRPORT FACILITIES S.L, with NIF B45850336, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their

responsibility within the period granted for the submission of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €2000.00, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €2000.00, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €1500.00.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (€2000.00 or €1500.00), they must make it effective by depositing it into account no. IBAN: ES-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are entitled.

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Likewise, you must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount paid.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive notice of the availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On July 6, 2023, the respondent has proceeded to pay the fine in the amount of 1500 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Likewise, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction can be imposed alongside a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be determined in the initiation notification of the procedure, and their effectiveness will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202206008, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to ALBEN AIRPORT FACILITIES S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-040822

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

